

1 IN THE COURT OF APPEALS OF THE STATE OF OREGON
2 1ANNIKA ERIKSSON, Appellant, v. THE BANK OF NEW YORK MELLON
3 FKA THE BANK OF NEW YORK, AS TRUSTEE FOR THE
4 CERTIFICATEHOLDERS OF CWALT, INC., ALTERNATIVE LOAN TRUST
5 2006-OC10, MORTGAGE PASS-THROUGH CERTIFICATES, SERIES
6 2006-OC10, and THE BANK OF NEW YORK MELLON FKA THE BANK OF
7 NEW YORK, AS TRUSTEE FOR THE CERTIFICATEHOLDERS OF CWALT,
8 INC., ALTERNATIVE LOAN TRUST 2006-OC11, MORTGAGE
9 PASS-THROUGH CERTIFICATES, SERIES 2006-OC11; NEWREZ, LLC D/B/A
10 SHELLPOINT MORTGAGE SERVICING; and ALL OTHER UNKNOWN
11 PARTIES, Respondents.

12 2Appellate Case No. A191649 — Clackamas County Circuit Court Case No.
13 24CV21417

14 NOTICE OF SUPPLEMENTAL STATUS UPDATE REGARDING MOTION TO
15 SET ASIDE JUDGMENT IN CASE NO. 17CV38591, AND MOTION FOR
16 INTERIM RELIEF PENDING RULING ON EMERGENCY MOTION FOR STAY

17 3Appellant Annika Eriksson, Pro Se, respectfully submits this Notice to inform the
18 Court of a material change in status occurring after the filing of Appellant's
19 Emergency Motion Under ORAP 7.35 for Stay of Enforcement Pending Appeal,
20 filed August 10, 2026. Appellant further moves, as set forth below, for interim relief
21 preserving the status quo while the Emergency Motion remains under submission.

22 4In her Declaration in support of the Emergency Motion, Appellant stated that her
23 Motion to Set Aside Void Judgment in Clackamas County Circuit Court Case No.
24 17CV38591 (Envelope #14448055) was submitted on August 5, 2026, and was, at
25 that time, under review by the trial court clerk.

26 5Appellant now advises the Court that, as of the date of this filing, the Motion to
27 Set Aside Judgment (Envelope #14448055) has been Accepted by the Clackamas
28 County Circuit Court and is now formally entered on the docket in Case No.
17CV38591.

6This development is material to the pending Emergency Motion because the
Motion to Set Aside Judgment directly challenges the validity of the 2019
foreclosure judgment that underlies the reformation judgment presently on appeal
in this matter. The Motion's acceptance onto the trial court docket confirms that a
live, pending challenge to the 2019 judgment now exists in the trial court.

7Appellant respectfully requests that the Court take note of this development in its
consideration of the pending Emergency Motion for Stay of Enforcement Pending
Appeal.

8Appellant further advises the Court that, as of the date of this filing, no interim or
temporary order addressing the Emergency Motion has yet been entered.

Respondents' response is not due until August 24, 2026, and the General Judgment
on appeal expressly authorizes Respondents to record a reformed sheriff's deed at
any time. Because recording could occur at any moment during the pendency of the
response period, and because a live, docketed challenge to the validity of the
underlying 2019 judgment now exists in Case No. 17CV38591, Appellant

1 respectfully requests that the Court consider whether interim relief preserving the
2 status quo is warranted while the Emergency Motion remains under submission.
3 9The standard governing the Emergency Motion is set out in ORS 19.350(3)(a),
4 under which the Court considers: (a) the likelihood that Appellant will prevail on
5 appeal; (b) whether the appeal is taken in good faith and not for the purpose of
6 delay; (c) whether there is support for the appeal in law or in fact; and (d) the
7 nature of harm to Appellant, to other parties, and to the public that will likely
8 result from the grant or denial of a stay. See *Neal v. Neal*, Court of Appeals No.
9 A169261 (Order Granting Stay, Jan. 17, 2020) (unpublished order of the Appellate
10 Commissioner).

11 10In *Neal*, arising from Clackamas County Circuit Court No. 18CV02117, the
12 Appellate Commissioner granted a stay under materially analogous circumstances.
13 The appellant there had been dismissed from the trial court on procedural grounds
14 rather than on the merits of her claims to real property, which included quiet title.
15 The Commissioner held that a preliminary showing of a reasonable likelihood of
16 prevailing was sufficient to satisfy the first factor, and found that a party's extensive
17 prior litigation history did not, standing alone, establish bad faith or support denial
18 of a stay. The Commissioner further held that denial of a stay would leave the
19 opposing party "free to dispose of the property," causing irreparable harm should
20 the appellant ultimately prevail, and accordingly stayed the judgment specifically to
21 prevent conveyance, transfer, sale, or encumbrance of the property pending appeal.
22 11The same considerations apply here with equal, if not greater, force. Appellant's
23 now-docketed Motion to Set Aside Void Judgment in Case No. 17CV38591 directly
24 challenges the validity of the 2019 foreclosure judgment underlying the reformation
25 judgment on appeal. As in *Neal*, a live and pending challenge to the foundational
26 judgment is itself a preliminary showing sufficient to support the first factor,
27 particularly because a ruling in Appellant's favor in Case No. 17CV38591 would
28 necessarily undermine the reformation judgment presently before this Court. Nor
does the existence of related, interconnected filings across Case Nos. 17CV38591
and 24CV21417 support an inference of delay or bad faith; as in *Neal*, the
interrelated nature of these proceedings reflects the interconnected legal defects at
issue, not tactical delay.

12The irreparable-harm factor is directly controlled by *Neal*. There, as here, the
harm at issue was not compensable in damages: it was the risk that the opposing
party could alter the status of real property before the appeal, and any related
challenge to the underlying judgment, could be resolved. Here, the General
Judgment on appeal expressly authorizes Respondents to record a reformed sheriff's
deed at any time, with no restriction pending either the response period or this
Court's ruling on the Emergency Motion. If the reformed deed is recorded before
this Court rules, Appellant's appeal, and her pending motion in Case No.

17CV38591, could be rendered effectively moot as to third-party title questions —
precisely the irreparable-harm scenario that warranted a stay in *Neal*.

13Given the imminent risk that recording may occur before Respondents' response
is due or before the Court has ruled on the Emergency Motion, Appellant

1 respectfully requests that the Court act on an interim basis, in advance of full
2 briefing, to preserve the status quo.

3 MOTION FOR INTERIM RELIEF

4 14For the foregoing reasons, Appellant respectfully moves this Court for a
5 temporary order enjoining Respondents from recording the reformed sheriff's deed,
6 or otherwise conveying, transferring, encumbering, or altering title to the subject
7 property, pending this Court's ruling on the Emergency Motion for Stay of
8 Enforcement Pending Appeal, or further order of this Court.

9 15DATED: August 17, 2026.

10 16Respectfully submitted,

11 17

12 18Annika Eriksson, Appellant Pro Se

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17 23CERTIFICATE OF SERVICE

18 24I certify that on August 17, 2026, I served a true and correct copy of the foregoing
19 Notice of Supplemental Status Update and Motion for Interim Relief on counsel of
20 record by First-Class Mail and e-mail courtesy copy: Gregor A. Hensrude &
21 Chancellor K. Eagle, Klinedinst PC (ghensrude@klinedinstlaw.com;
22 ceagle@klinedinstlaw.com) by First-Class Mail & e-mail courtesy copy.

23 24DATED: August 17, 2026.

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25 26Annika Eriksson, Appellant Pro Se

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